Tentative Rulings for July 15, 2026
Department 2

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 143 8184

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2402823	MOTON vs GIBSON	MOTION TO COMPEL

Tentative Ruling:

Summary of Ruling: Plaintiffs' Motion to Compel Compliance is moot if full production is completed before the hearing. Otherwise, the Court grants the Motion to Compel Compliance within 10 days. Separately, the Court grants Plaintiffs' request for monetary sanctions in the amount of $1,410.00.

Factual/Procedural Context

Plaintiff Natalie Mary Moton ("Plaintiff") operates a working ranch in Temecula known as Namaste Farms where she has specialized in the production of wool, fiber, and wool products. (Compl. ¶ 6.) Plaintiff and Defendant Joni Gibson ("Defendant") are neighbors involved in a related title dispute—*Moton v. The Ark, LLC*, Case No. CVSW2204328, filed in 2022—in which the parties stipulated that Defendant is not a good faith purchaser of property as the purchase took place while Defendant knew that Plaintiff has a claim to the property. (*Id.* at ¶¶ 7–9.)

Plaintiff alleges that beginning around September 3, 2024, Defendant began posting false claims on social media that animals at Namaste Farms, including dogs, were abused daily. (*Id.* at ¶ 11, Ex. A.) The posts included photos of an emaciated sheep that did not belong to Plaintiff and lacked any USDA ear tag, and Defendant posted a link to Namaste Farms' homepage to encourage others to repeat the allegations. (*Id.* at ¶ 12.)

On September 6, 2024, Riverside County Animal Control and the Sheriff's Department investigated and determined the allegations were "unfounded," closing the investigation, as confirmed in the video transcript where the Sergeant of the Animal Control agreed the case was unfounded. (*Id.* at ¶ 15, Ex. B.) Plaintiff alleges that despite this, Defendant doubled down on September 7, 2024, falsely claiming Plaintiff had "swapped out" animals before investigators arrived, and removed the exonerating animal control video from her feed on September 11, 2024, while reposting the original false post and refusing to remove it or issue a retraction. (*Id.* at ¶ 16, Ex. C.)

On September 18, 2024, Plaintiff filed a Complaint against Defendant and her husband, Oliver Gibson (collectively, "Defendants"), asserting two causes of action: (1) defamation (libel per se), and (2) defamation (trade libel). Plaintiff seeks a preliminary and permanent injunction against Defendant from engaging in the alleged defamation, along with an order to take down the alleged defamatory posts. Plaintiff also seeks compensatory and general damages in an amount not less than $1,000,000.00.

On February 14, 2025, Defendants filed their Answer to the Complaint, denying each and every allegation and asserting six affirmative defenses: (1) truth, (2) opinion, (3) Plaintiff is a public figure, (4) harm was caused by Plaintiff's actions, not

Defendants', (5) Defendants' actions were based on facts as known to them, and (6) mitigation.

On January 13, 2026, Plaintiff propounded several sets of discovery on Defendant, including Requests for Production of Documents ("RFPs"), Set Two. As relevant to the current motion, RFP Nos. 18–25 sought digital copies of all photos previously produced in discovery by Defendant with all preserved metadata, all documents that she identified in her responses to Form Interrogatories ("FROGs") concurrently served and the documents identified in her responses to Special Interrogatories ("SROG").

Defendant served unverified responses to RFPs on March 3, 2026, with verifications received on March 16, 2026. In her responses, Defendant agreed, subject to privilege objections, to produce documents responsive to each request, including native digital photographs with preserved metadata and executed witness declarations, Riverside County Code Enforcement records, and native digital photographs of the animals.

On March 5, 2026, Plaintiff sent a meet-and-confer letter addressing the deficiencies in Defendant's responses. On March 20, 2026, Defense counsel emailed apologizing for the delay, but no documents followed.

On March 27, 2026, Plaintiff sent another meet-and-confer letter addressing the deficiencies. Plaintiff sent follow-up emails on April 6 and 13, 2026, with no response and no production received. Defense counsel had also confirmed by phone that records would be produced by the end of the week of April 10, 2026, but no production followed.

On April 22, 2026, Plaintiff filed the instant motion to compel compliance regarding RFPs, Set Two. No production of the RFP documents has been made.

Plaintiff moves under CCP § 2031.320 for an order compelling Defendant to produce documents she agreed to produce in her verified responses to RFPs, Set Two. Plaintiff explains that on March 3, 2026, Defendant served unverified responses agreeing to produce responsive documents, with verifications received March 16, 2026, but Defendant never produced the documents despite repeated promises. Plaintiff cites CCP § 2031.320 and *Standon Co. v. Superior Court* (1990) 225 Cal.App.3d 898, 903 for the rule that all that must be shown is the responding party's failure to comply as agreed. Plaintiff seeks monetary sanctions against Defendant in the amount of $1,410.00, noting this is the second motion Plaintiff has had to bring to obtain records, with prior discovery orders and sanctions already entered against Defendants.

Defendant's initial June 1, 2026 opposition did not address the merits but requested a continuance based on lack of service, asserting that her counsel's firm had no record of ever having received the motion and that neither her counsel nor anyone else in the firm has ever received the motion. This Court continued the hearing to July 15, 2026, and set a briefing schedule for substantive opposition and reply.

Defendant thereafter filed a substantive opposition through her new counsel, who declared that he had recently taken over the matter and believed he could resolve the RFPs, Set Two discovery issues before the hearing. (Daher Decl. ¶¶ 1–2.) In Defendant's separate statement, Defendant represented that new counsel was meeting and conferring with Plaintiff's counsel, expected the issues to be resolved before the hearing, and anticipated producing all relevant, non-privileged documents. (Def.'s Separate Statement pp. 2–9.)

In reply, Plaintiff emphasizes that Defendant does not meaningfully oppose the motion and instead say only that new counsel will meet and confer and produce records before the hearing. Plaintiff states that, as of the reply, she still had not received the subject records despite prior promises of production. Plaintiff also contends that objections not asserted in the original responses were waived, and that the delay has needlessly prolonged discovery, including meaningful depositions. Plaintiff thus asks the Court to order production of RFP Nos. 18–25 within 10 days and award $1,410.00 in sanctions.

Analysis

CCP § 2031.320(a) authorizes the Court to compel compliance where a party that served a statement of compliance "thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance." (CCP § 2031.320(a).) Unlike a motion to compel further responses, a section 2031.320 compliance motion does not require a separate statement or meet-and-confer declaration. (*Standon Co. v. Sup. Ct.* (1990) 225 Cal.App.3d 898, 903.) The moving party's burden is narrow: once the responding party has agreed to produce, "there is no longer any dispute over the right to inspect the documents or objects," and the only question is whether the responding party has done what it promised. (*Id.*) Monetary sanctions are mandatory against the unsuccessful party absent substantial justification or other circumstances making sanctions unjust. (CCP § 2031.320(b).)

Plaintiff moves to compel production of documents Defendant agreed to produce in her verified responses to RFPs, arguing that no documents have been produced despite multiple promises. Defendant does not oppose on the merits. Instead, new counsel represents that he has recently taken over the matter and anticipates resolving all issues and producing all relevant, non-privileged documents prior to the hearing. (Daher Decl. ¶¶ 1–2.)

Defendant has thus effectively agreed to resolve the discovery issue by supplemental production before the hearing. If Defendant provides complete production of all documents she agreed to produce in her verified responses to RFP Nos. 18–25 before the hearing, there will be no remaining failure to comply requiring a court order, and the motion is moot as to the request for a compliance order. If production has not been completed by the hearing, the Court should grant the motion under section 2031.320(a) and order production within 10 days.

Monetary sanctions, however, remain appropriate regardless of whether production is completed before the hearing. Under section 2031.320(b), the Court “shall impose” a monetary sanction against a party who unsuccessfully opposes a motion to compel compliance, unless it finds substantial justification or that other circumstances make sanctions unjust. (CCP § 2031.320(b).) Defendant’s opposition promised only future performance and did not contest the underlying failure to produce, nor offer substantial justification for the months long delay (from March 16, 2026, when verifications were served, through at least July 2, 2026) that necessitated this motion. Plaintiff’s requested sanctions of $1,410.00, calculated at a $300 hourly rate for approximately 4.5 hours of attorney time plus a $60 filing fee, are reasonable. (Zemming Decl. ¶ 6.)

At the hearing, the Court will inquire into the status of Defendant’s compliance with her verified agreement to produce documents responsive to RFP Set Two Nos. 18–25.

- If Defendant has completed production of all documents she agreed to produce before the hearing, the motion to compel compliance is **MOOT**.
- If Defendant has not completed production by the hearing, the Court will **GRANT** the motion and **ORDER** Defendant to produce all documents she agreed to produce in response to RFP Set Two Nos. 18–25, within 10 days of the date of the order.
- Separately, the Court **GRANTS** Plaintiff’s request for monetary sanctions in the amount of $1,410.00.

2.

CASE #	CASE NAME	HEARING NAME
CVME2402823	MOTON vs GIBSON	MOTION TO COMPEL

Tentative Ruling:

See #1 above.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500864	HARVEY vs OGDEN 26 LLC	MOTION TO COMPEL

Tentative Ruling:

Hearing continued to September 1, 2026 by stipulation of parties.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2403574	SILVAS vs BMW OF NORTH AMERICA, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Summary of Ruling:

The Court awards attorney fees in the court's discretion, and such amount shall be no more than $26,915 in fees. Additionally, the Court awards costs and expenses totaling $2,770.

Facts/Procedural Summary

This is a lemon law case. Plaintiffs filed the instant lawsuit on June 20, 2024. Plaintiffs alleged various defects and nonconformities to warranty for their 2021 BMW M340i. The parties exchanged discovery and Plaintiff David Silvas was deposed. BMW's person most knowledgeable was also deposed. On August 15, 2025, BMW made a Section 998 offer in the amount of $20,000 with attorney fees by motion. Plaintiffs accepted the offer.

Plaintiffs now bring the instant motion for attorney fees. Plaintiffs seek a total of $42,561.50 plus costs and expenses totaling $2,770. The motion is supported by the declaration of Jorge L. Acosta, attorney for Plaintiffs. Exhibit A to Acosta's declaration is a copy of the firm's billing records in this matter. Four separate attorneys worked on the instant matter, as well as law clerks and paralegals.

Defendant opposes the motion. Defendant argues this was a straightforward, not heavily-litigated case that does not warrant $45,331.50 in fees and costs. Defendant argues the fees requested should be reduced to no more than $15,000. Defendants challenge Plaintiffs' attorney's hourly rates as excessive. Defendant also challenges various billing entries and argues counsel charged excessive and improper amounts for various work performed.

Initially, Exhibit A to the Acosta declaration only included billing entries for Sergio Aivazov. Counsel realized the error and provided the full exhibit with the Reply. The court continued the hearing to allow Defendant time to review the Exhibit and file a supplemental Opposition.

Analysis

I. Recovering Attorney Fees

Under Civ. Code §1794(d), "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co*. (1989) 190 Cal.App.3d 1051, 1062.) The court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as complexity of the case, procedural demands, skill exhibited and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.)

The Lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate, and may be augmented or diminished based on several factors, including: "(1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (Id at 998.) The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.)

The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Fee motions should be based on detailed time record. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) Once the prevailing party has made a prima facie showing that its fee request was fair and reasonable, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours or the hourly rate or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

II. Reasonableness of Fees

Defendant does not dispute that Plaintiffs are entitled to recoup attorneys' fees and costs, only that the amounts sought are unreasonable. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co*. (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.)

Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically, in exercising its discretion, the Court may consider all facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended is. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Plaintiffs' counsel incurred $42,561.50 in fees from attorneys Courtney Perdue ($695/hour), Christopher Urner ($525/hour), Jorge L. Acosta ($450/hour for partner rate; $350/hour for associate rate), and Sergio Aivazov ($300/hour). Jorge L. Acosta billed 30.4 hours (9 hours at associate rate and 21.4 at partner rate). Christopher Urner billed 21.8 hours. Courtney perdue billed 10.7 hours. Sergo Aivazov billed 20 hours. Law clerks billed another 6.6 hours and a paralegal billed 13 hours.

Defendant first challenges the hourly rates for counsel. Defendant argues the hourly rates are excessively high and specifically challenges the $695/hour rate for Courtney Perdue. Defendant's argument has merit. The vast majority of the hours billed in this matter were billed at a rate of $450/hour or higher. This is high for lemon law claims in Riverside County. As such, the court reduces the hourly rates of $450 or higher to $350/hour.

Attorney	**Original Rate**	**New Rate**	**Hours**	**Total**
Courtney Perdue	$695/hour	$350/hour	10.7	$3,745
Christopher Urner	$525/hour	$350/hour	21.8	$7,630
Jorge L. Acosta (partner rate)	$450/hour	$350/hour	21.4	$7,490
Jorge L. Acosta (associate rate)	$350/hour		9	$3,150
Sergo Aivazov	$300/hour		20	$6,000
Law Clerks	$250/hour		6.6	$1,650
Paralegal	$250/hour		13	$3,250
			Total	**$26,915**

Defendant then challenges seven specific billing entries arguing that, individually, the entries are not concerning but when taken as a whole they indicate Plaintiffs' counsel's attempt to inflate attorney fees through a variety of methods. Defendant challenges the following entries:

- File Review in June 2024: Counsel billed 1.7 hours, 1.1 hours, and 1.4 hours for file review and similar tasks on June 10, 16, and 20. Defendant argues these hours should be reduced since counsel completed nearly identical tasks on each date.

- June 30, 2024: Counsel billed 2.3 hours for researching the NHTSA database. Defendant argues this is facially excessive.
- Drafting Discovery: Defendant challenges the 1.2 hours billed to draft standard discovery arguing Plaintiff's counsel relied on templates and overbilled the time spent.
- Notice of Deposition: Defendant challenges 1.5 hours billed to prepare multiple notices of deposition.
- Analysis of Objections: Defendant challenges Plaintiff's counsel billing 0.3 hours to review discovery objections every time they were served.
- Deposition Preparation: Defendant challenges the 2.9 hours billed to prepare Plaintiffs for deposition when the deposition never occurred. However, the deposition was noticed so it is not unreasonable for counsel to prepare for the deposition.
- Motions in Limine: Defendant challenges spending 4.2 hours on preparing motions in limine that did not serve any legitimate purpose.

The significant reduction in counsel's hourly rates has substantially reduced the lodestar fee amount. It is not also necessary to nitpick each of Plaintiff's counsel's billing entries. Additionally, even Defendant notes "[i]ndividually, the entries above do not raise substantial concern." (Supp. Opp. 5:19.) Defendant is correct as the above entries all appear to be facially appropriate. Given the court's adjustment of the overly inflated hourly rates, it is not also necessary to reduce the hours billed on these individual entries, as well.

Defendant did not challenge the claimed costs and expenses of $2,770. Therefore, the court additionally awards this amount.